

Prevention of Illegal Eviction from and Unlawful Occupation of Land Act 19 of 1998

PREVENTION OF ILLEGAL EVICTION FROM AND UNLAWFUL OCCUPATION OF LAND ACT 19 OF 1998

Section 4 — Eviction of unlawful occupiers

Notwithstanding anything to the contrary contained in any law or the common law, no proceedings for eviction of an unlawful occupier may be instituted without written notice of at least 14 days to the unlawful occupier and the municipality.

The court must be satisfied that it is just and equitable to grant an order after considering all the relevant circumstances, including—

- the rights and needs of the elderly, children, disabled persons and households headed by women;
- whether land has been made available or can reasonably be made available by a municipality or other organ of state or another land owner for the relocation of the unlawful occupier.

Section 6 — Urgent proceedings

Special procedure for urgent eviction where there is a real and imminent danger of substantial injury or damage.

Relationship with common law *rei vindicatio* and ESTA (Extension of Security of Tenure Act 62 of 1997) for occupiers on farms.

Landmark cases interpreting PIE include *Port Elizabeth Municipality v Various Occupiers* 2005 (1) SA 217 (CC) and *City of Johannesburg v Blue Moonlight Properties* 2012 (2) SA 104 (CC).

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —